

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT				1. CONTRACT ID CODE		PAGE OF PAGES 1 18	
2. AMENDMENT/MODIFICATION NO. 0002		3. EFFECTIVE DATE 5-Sep-2025		4. REQUISITION/PURCHASE REQ. NO.		5. PROJECT NO.(If applicable)	
6. ISSUED BY U. S. ARMY ENGINEER DISTRICT, LOUISVILLE 600 DR. MARTIN LUTHER KING, JR. PLACE ROOM 821 LOUISVILLE KY 40202-2239		CODE W912QR		7. ADMINISTERED BY (If other than item 6) See Item 6		CODE	
8. NAME AND ADDRESS OF CONTRACTOR (No., Street, County, State and Zip Code)				X		9A. AMENDMENT OF SOLICITATION NO. W912QR25R0018	
				X		9B. DATED (SEE ITEM 11) 17-Jul-2025	
						10A. MOD. OF CONTRACT/ORDER NO.	
						10B. DATED (SEE ITEM 13)	
CODE		FACILITY CODE					
11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS							
☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offer ☐ is extended, ☒ is not extended. Offer must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended by one of the following methods: (a) By completing Items 8 and 15, and returning <u>1</u> copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or telegram which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by telegram or letter, provided each telegram or letter makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.							
12. ACCOUNTING AND APPROPRIATION DATA (If required)							
13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.							
A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.							
B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation date, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(B).							
C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:							
D. OTHER (Specify type of modification and authority)							
E. IMPORTANT: Contractor ☐ is not, ☐ is required to sign this document and return _____ copies to the issuing office.							
14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.) IDIQ Design Build and Design Bid Build Multiple Award Task Order (MATOC) to support the military construction (MILCON) and operations and maintenance (O&M) funded construction requirements for U.S. Army, U.S. Air Force, Army Reserve and Air Force Reserve in the Louisville District Area of Responsibility is hereby amended as follows: See Summary of Changes							
Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.							
15A. NAME AND TITLE OF SIGNER (Type or print)				16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)			
				TEL: _____ EMAIL: _____			
15B. CONTRACTOR/OFFEROR		15C. DATE SIGNED		16B. UNITED STATES OF AMERICA		16C. DATE SIGNED	
_____ (Signature of person authorized to sign)				BY _____ (Signature of Contracting Officer)			

SECTION SF 30 BLOCK 14 CONTINUATION PAGE

SUMMARY OF CHANGES

SECTION 00 10 00 - SOLICITATION

The following have been added by full text:

SUMMARY OF CHANGES 0002

Amendment 0002

1. Specification 00 22 16, paragraph 5.1 Submission Requirements, have been updated in their entirety.
2. Section 01 45 01.10 06 have been incorporated in its entirety.
3. Sample Past Performance Questionnaire have been incorporated in its entirety.
4. All other terms and conditions remain unchanged.

SECTION 00 22 00 - SUPPLEMENTARY INSTRUCTIONS

The following have been modified:

SECTION 00 22 16

SECTION 00 22 16

Procedures for Submittal and Evaluation of Offers for Phase I

1. **Overview.**
 - 1.1 The intent of this solicitation is to target seven (7) contractors for Indefinite Delivery Indefinite Quantity (IDIQ) Multiple Award Task Order Contracts (MATOCs) for primarily Design Build (D/B) projects within the Louisville District Area of Responsibility to support the U.S. Army and U.S. Air Force partners, U.S. Army Reserve, and Air Force Reserves.
 - 1.2 This is a two-phase procurement, and the basis of award is the Best Value Trade-Off Process. Potential offerors are invited to submit the information described in this Section 00 22 16 for review and evaluation by the Government. Following completion of the evaluation of Phase I, up to a maximum of ten (10) most highly qualified offerors will be selected to participate in Phase II. The selected offerors for Phase II will be invited to submit the information described in Section 00 22 18, Procedures for Submittal of Offers for Phase II, for review and evaluation by the Government. Price will be evaluated in Phase II through use of a sample project and binding contract rates. No seed task order will be awarded as a result of this solicitation. Only the base MATOCs will be awarded.

Following completion of the Phase II evaluation, the Contracting Officer will target to award seven (7) contracts to the responsible offeror whom the Source Selection Authority determines conforms to the solicitation, are fair and reasonable, and offer the best overall value to the Government, all factors considered. The Government reserves the right to accept other than the lowest priced offer or to reject all offers.

2. **Submittal of Offers.**

- 2.1 Proposals should follow in the order of sequence set forth in the RFP. Information provided out of sequence may not be evaluated and may result in the offeror's disqualification from award.
- 2.2 Offerors shall submit their proposals electronically in accordance with the Proposal Submission Instructions in Section 00 21 00 of the solicitation. Please follow the instructions precisely as proposals must complete the upload no later than the time and date specified in Block 13 of Standard Form 1442. NOTE: The Louisville District is in the Eastern Time Zone.
- 2.3 For Phase I, offerors are required to submit a proposal consisting of the information identified in paragraphs 2.4 and 2.5 below. Phase I proposal sections should parallel the submission requirements identified herein.
- 2.4 The complete Volume I for Phase I shall include the following information:
- Volume I – Factor I: Past Performance
 - Prime Contractor
 - A/E Designer of Record (DOR)
 - Volume I – Factor II: Technical Approach

***NOTE:** Failure to place the required submission information under the appropriate tab may result in a lower rating if the evaluators cannot readily find the appropriate information. Any specified page limits will be strictly adhered to and enforced. Information submitted that exceeds the specified limit(s) will not be evaluated.

- 2.5 Volume II for Phase I shall include the following information:
- Volume II – Tab A: Standard Form 1442
 - Volume II – Tab B: Joint Venture Agreements
 - Volume II – Tab C: Evidence of Ability to Obtain Bonding and Proof of Financial Ability
 - Volume II – Tab D: Pre-Award Information

NOTE: Phase I does NOT involve pricing submission. Failure to place the required submission information under the appropriate tab (factor) may result in a lower rating if the evaluators cannot readily find the appropriate information.

3. **Proposal Evaluation Process.**

- 3.1 A Source Selection Evaluation Board (SSEB) comprised of representatives of the Corps of Engineers and User/Customer will evaluate the proposals. Offerors are advised that the technical evaluation and rating of proposals will be conducted in strict confidence. Technical (Volume I) proposals will be reviewed and rated without knowledge of the price offered. The number and identities of offerors are not revealed to anyone not involved in the evaluation and award process or to other offerors. Proposals will be evaluated based on the factors described herein.
- 3.2 The evaluation process for Phase I essentially consists of two parts: proposal compliance review and responsibility review, and technical evaluation.
- 3.2.1 **Proposal Compliance / Responsibility Review:** The Government will conduct an initial review to determine whether the offeror has submitted a complete and compliant proposal. Offeror proposal compliance will not be evaluated by the government, but the proposal compliance review will verify RFP compliance and whether the offeror submitted all proposal data requested in Volume I and Volume II. Proposals which do not include the information required for Volume I and Volume II, consequently, may be deemed ineligible for award, and may not be further evaluated.
- 3.2.2 **Technical Evaluation:** The Government will evaluate and rate the Volume I proposals against the RFP requirements. Factor I – Past Performance will be rated using Tables 1 and 2 below. The rating will be based on overall confidence in performance (Table 2, below), with the final confidence assessment rating based on the extent of recent, relevant past experience (Table 1, below) and the quality of the offeror's performance. Factor II – Technical Approach will be rated using Table 3 below.

4. **Proposal Information and Related Evaluation Factors.**

- 4.1 Phase I proposals will be evaluated in accordance with the factors below, listed in relative order of importance. Offerors are reminded to include their best technical proposal in their initial offer. The initial offer and subsequent Government evaluation will be the basis for the selection of up to ten (10) most highly qualified offerors to continue on to Phase II of the procurement.
- 4.2 **Volume I – Factor I – Past Performance** **1st**
- Prime Contractor Approximately Equal to A/E Designer of Record
 - A/E Designer of Record Approximately Equal to Prime Contractor
- 4.3 **Volume I – Factor II – Technical Approach** **2nd**
- 4.4 **Volume II – Pro Forma Information**
Tab A Standard Form 1442 Not Rated

Tab B Joint Venture Agreement (if applicable)	Not Rated
Tab C Evidence of Ability to Obtain Bonding and Proof of Financial Ability	Not Rated
Tab D Pre-Award Information	Not Rated

4.5 Ratings

Evaluators will apply the rating for the definition that most closely matches the evaluation.

TABLE 1 Past Performance Relevancy Ratings	
Rating	Description
Very Relevant	Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.
Relevant	Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.
Somewhat Relevant	Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.
Not Relevant	Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires.

TABLE 2 Performance Confidence Assessments	
Rating	Description
Substantial Confidence	Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.
Satisfactory Confidence	Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.
Neutral Confidence	No recent/relevant performance record is available or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned. The offeror may not be evaluated favorably or unfavorably on the factor of past performance.
Limited Confidence	Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.
No Confidence	Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will successfully perform the required effort.

TABLE 3 Technical / Risk Assessment Ratings	
Adjectival Rating	Description
Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate

Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Unacceptable	Proposal does not meet the requirements of the solicitation, and thus, contains one or more deficiencies and is unawardable, and/or risk of performance is unacceptably high.

4.6 **Definitions**

1. Deficiency. A material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level. See FAR 15.001.
2. Strength. An aspect of an offeror's proposal that has merit or exceeds specified performance or capability requirements in a way that will be advantageous to the Government during contract performance.
3. Significant Strength. An aspect of an offeror's proposal that has appreciable merit or appreciably exceeds specified performance or capability requirements in a way that will be appreciably advantageous to the Government during contract performance.
4. Weakness. A flaw in the proposal that increases the risk of unsuccessful contract performance. See FAR 15.001.
5. Significant Weakness. A flaw in the proposal that appreciably increases the risk of unsuccessful contract performance. See FAR 15.001.
6. Uncertainty. Any aspect of a non-cost/price factor proposal for which the intent of the offeror is unclear (e.g., more than one way to interpret the offer or inconsistencies in the proposal indicating that there may have been an error, omission, or mistake).
7. Clarification. Limited exchanges between the Government and offerors that may occur when award without discussions is contemplated. See FAR 15.306(a)(1).
8. Adverse Past Performance. Past performance information that supports a less than satisfactory rating on any evaluation.

5. **Volume I – Factor I: Past Performance**

5.1 **Submission Requirements:**

5.1.1 Prime Contractor:

Provide descriptions of up to three (3) projects substantially completed within the last five (5) years (from the solicitation issue date) that are similar to this project in size, scope, and complexity, where the interested firm served as the prime contractor. Projects completed more than five (5) years before the solicitation issue date may be considered, however, could be evaluated as less relevant. Projects are considered substantially complete if enough work has been performed such that it demonstrates the ability to successfully complete all phases of the project. An Indefinite Delivery Indefinite Quantity (IDIQ) contract may be submitted only if a single task order could be considered similar to this project. Task orders may not be combined in order for the project to be considered similar.

- 5.1.2 Projects considered similar in size would be a minimum of 5,000 square feet. This square footage may be a combination of multiple facilities, provided all work was completed under a single contract action.
- 5.1.3 Projects considered similar in scope and complexity to this project shall be Design/Build projects for renovation or new construction of warehouses, office/administrative spaces, research laboratories, vehicle maintenance facilities, storage facilities, hangars, infrastructure additions/improvements, Dining Facilities, Data Centers, Airfield Replacement, Secure Rooms, or minor repair projects.

NOTE: Design/Bid/Build projects may be submitted; however, they may be considered less relevant than Design/Build projects.

- 5.1.4 The prime contractor must have self-performed at least 15% of the cost of the contract, not including the cost of materials, with its own employees to be considered similar.
- 5.1.5 Additional consideration may be given for projects that contain the following features:
 - a) Projects that contain both renovation and new construction, within the same contract.
 - b) Design-Build projects that are considered to be more complex designs such as office/administrative spaces, research laboratories, vehicle maintenance facilities, data centers, secure rooms, and major repair projects.
 - c) Established working relationship with the proposed Prime Contractor/designer on prior design/build projects.
 - d) Renovation or new construction for USACE.
 - e) Demonstrated experience in successfully completing projects within the Louisville District Area of Responsibility (AOR) consisting of Michigan, Illinois, Indiana, Ohio, and Kentucky (including Air Force Reserves and Army Reserves projects completed within these states).
- 5.1.6 The following information shall be provided for each project:
 - a) Project Title, Location, and Contract Number/Unique Identifier
 - b) Current percentage of construction complete and the date it was or will be complete
 - a. For projects that are not complete, provide description of work remaining to be completed.

- c) Scope of the project, to include purpose/use of facility
- d) Size of the project, differentiate square footage of new construction versus renovation if the project includes both
- e) Type and percentage of work that was self-performed
- f) Whether the project involved new construction, renovation, or both.
- g) Whether the project was completed as a Design/Build project in collaboration with the proposed DOR.
- h) Whether the project was completed for USACE.
- i) References.

5.1.7 For this factor, also include any ratings, letters, awards, etc. that support past performance on these projects. Any of this information that is submitted shall clearly identify to which of the submitted projects it pertains. A sample Past Performance Questionnaire is attached for your convenience. If used, the Past Performance Questionnaire must be submitted by the offeror with the proposal submission and **not** sent directly to the agency by the reference. For each project, the offeror may provide information on problems encountered on the identified contracts and the offeror's respective corrective action.

NOTE: The Architect/Engine Designer of Record (A/E DOR) identified in the offeror's proposal at the time of contract award must be used for performance under this MATOC. Any deviations must be submitted to the Contracting Officer for review and approval. No deviations will be permitted unless approved by the Contracting Officer.

NOTE: For purposes of evaluating past performance, the Prime Contractor as stated in paragraph 5.1.1 is defined as the contractor identified in Block 14 of the Standard Form 1442. Projects performed by contractors other than the offeror, including, but not limited to, teaming partners, subcontractors, and sister or parent companies will not be evaluated for past performance, unless those other contractors are part of a joint venture offeror as demonstrated by a signed joint venture (JV) agreement. If more than one contractor is listed in Block 14, then a signed JV agreement must be submitted with the proposal and the JV shall be registered as such in the System for Award Management (SAM). However, each party of the JV must submit their own Unique Entity Identifier Number (formerly known as DUNS) with the JV proposal. Projects performed by other contractors than the offeror, such as teaming partners or subcontractors, will not be evaluated for past performance, unless those other contractors are part of a JV offeror as demonstrated by a signed JV agreement. If the offeror represents the combining of two or more companies as a JV for the purpose of this RFP, each company in the JV may submit project examples, but the total submitted by the JV will not exceed three (3).

Relevant past performance information provided for affiliates of the offeror will be considered. Affiliates (as defined by FAR 2.101) means associated business concerns or individuals if, directly or indirectly either one controls or can control the other; or third-party controls or can control both. Affiliation will be determined in accordance with 13 CFR 121.103. In determining whether affiliation exists, the Government will consider the totality of the circumstances and may find affiliation even though no single factor is

sufficient to constitute affiliation. If an offeror is submitting the past performance of an affiliate, the offeror must submit proof of affiliation pursuant to 13 CFR 121.103.

5.1.8 A/E Designer of Record (DOR):

Provide descriptions of up to three (3) projects that have been constructed (i.e., construction is substantially complete) within the last five (5) years (from the solicitation issue date) that are similar in size and scope (see paragraphs 5.1.2 and 5.1.3 above). In order to be considered similar, the proposed A/E firm must have been the DOR on the submitted project. The listed design firm must be used on the project. No deviations will be permitted unless approved by the Contracting Officer. Indicate any previous working relationship with the prime contractor. In addition to the above and below, provide the information requested in paragraph 5.1.6.

The offeror must affirmatively state who their proposed DOR for the project will be and provide the DOR's Unique Entity Identification (UEID) number and CAGE Code.

5.1.9 Additional consideration may be given for the DOR projects that contain the following features:

- a) Projects that contain both renovation and new construction, within the same contract.
- b) Design-Build projects that are considered to be more complex designs such as office/administrative spaces, research laboratories, vehicle maintenance facilities, data centers, secure rooms, and major repair projects.
- c) Established working relationship with the proposed Prime Contractor/designer on prior design/build projects.
- d) Renovation or new construction for USACE.
- e) Demonstrated experience in successfully completing projects within the Louisville District Area of Responsibility (AOR) consisting of Michigan, Illinois, Indiana, Ohio, and Kentucky (including Air Force Reserves and Army Reserves projects completed within these states).

5.2 **Evaluation Criteria:**

- 5.2.1 For both the Prime and DOR elements of this factor, the Government will first evaluate the relevancy of recent past performance identified in the proposal in response to paragraph 5.1 above. By using the criteria identified above, the Government will determine how relevant a past project is when compared to the scope, size, and magnitude of effort and complexities of the solicited project. A relevancy rating will be assigned to each submitted project using the Past Performance Relevancy Ratings table above. 5.2.2 For both the Prime and DOR elements of this factor, the Government will next review how well the offeror performed on those projects. The Government reserves the right to check any or all cited references to verify supplied information and to assess owner satisfaction. The Government also reserves the right to not contact the provided references. In addition to the information submitted by the offeror, the Government

reserves the right to review any other sources of relevant information for evaluating past performance, including projects other than those submitted by the offeror. The Government will, at a minimum, review past performance information retrieved through the Contractor Performance Assessment Reporting System (CPARS), using all CAGE/Unique Entity Identifier numbers. Offerors submitting past performance projects which have been assigned ratings in CPARS should include the record as part of their submission so that the Government may assess the quality of their performance as part of the overall confidence assessment. Other sources may include, but are not limited to, past performance information retrieved from inquiries of owner representative(s), Federal Awardee Performance and Integrity Information System (FAPIIS), Electronic Subcontract Reporting System (eSRS), and any other known sources not provided by the offeror.

- 5.2.3 The Government will review all past performance information collected for both the Prime and DOR elements of this factor. The Government will determine the quality of the offeror's performance, general trends, and usefulness of the information and incorporate this information into the performance confidence assessment. The Government will assign a final, overall Performance Confidence rating, using the ratings in the Performance Confidence Assessment table above, based on the Governments assessment of (1) the degree of the offeror's recent, relevant experience, and (2) how well the offeror performed that experience. **NOTE: The Past Performance of both the Prime and A/E DOR will be weighted approximately equally in the establishment of the overall Performance Confidence rating.**

6. **Volume I – Factor II: Technical Approach**

6.1 **Submission Requirements:**

- 6.1.1 Provide a narrative that describes the offerors intended corporate technical approach for executing design-build contract per the detailed requirements herein. Clearly and concisely describe the offeror's Design-Build team, and how members of the team will work collaboratively to ensure timely, quality completion of the project. The Technical Approach narrative shall address the information described in paragraphs 6.1.2 – 6.1.4 below.
- 6.1.2 **Roles and Responsibilities:** Describe the roles and responsibilities of the offeror's Design-Build team and how their resources will be utilized in order to deliver this design-build project. Describe the proposed management structure for the Design-Build team (i.e., key members), explaining how the design and construction process will be managed throughout the entirety of the project life cycle (e.g., Design, Construction, Close-out).
- 6.1.3 **Communication Plan:** Describe how the offeror intends to interact and communicate within its own Design-Build team, as well as externally with the Corps of Engineers, throughout the entirety of the project life cycle and the base MATOC life cycle.

- 6.1.4 Quality Control: Describe the Design-Build team's quality control approach, corporate systems, and capabilities to maintain quality control of the design and construction. Demonstrate understanding of the quality control requirements of specification 01 45 04.10 06, Contractor Quality Control, to include but not be limited to the quality control plan, the three phase control system, and management and tracking of changes/revisions throughout the design and construction phases of the project.

NOTE: There is a page limit of eight (8) pages, using a minimum font size of 11 and a minimum margin of one-half inch on all sides, for the Technical Approach for Design/Build Factor.

6.2 Evaluation Criteria:

- 6.2.1 The Government will evaluate the strengths, weaknesses, and any deficiencies in the proposal. The Government will evaluate the offeror's understanding of the USACE Design/Build process and how well it has demonstrated its ability to successfully execute design-build projects. Offerors are encouraged to tailor their proposal to demonstrate their approach for successfully completing the sample Design/Build project.

The Government will evaluate the offeror's understanding of the design process and the roles of the designers of record, construction firm, and the Government reviewers. The evaluation will be based on how well the offeror demonstrates their organizational (i.e. the structure and staffing) ability to execute design/build projects, to include the integration of the design and construction firms during design and construction. Proposals demonstrating that construction personnel will be actively involved in the design process may be viewed more favorably by the Government. The Government will evaluate the role of the designer in maintaining design integrity throughout the process, including its key roles during construction.

The Government will evaluate the offeror's capabilities and understanding of the contractually required quality control processes for both design and construction, as well as the strength of the offeror's proposed approach to control and track revisions to the design. The Government places value upon continued participation by the designers of record during the construction quality control process.

7. Volume II - Proforma Information

7.1 Tab A - Standard Form 1442.

7.1.1 Submission Requirements:

The offeror shall complete and submit Standard Form 1442.

7.1.2 Evaluation Criteria:

The Standard Form 1442 will not be rated. The form will be reviewed to determine if required information is provided, amendments are acknowledged, and the offer signed.

NOTE: Phase I does NOT involve pricing submission.

7.2 Tab B – Joint Venture Agreements

7.2.1 Submission Requirements:

If more than one contractor is listed in Block 14, or the offeror listed in Block 14 is a joint venture (JV), then a signed JV agreement must be submitted with the proposal and the offeror shall be registered in the System for Award Management (SAM) as a legal entity separate from the individual joint venture members. However, each member of the JV must submit its own Unique Entity Identifier (formally DUNS number) with the proposal.

Small business offerors (e.g., 8(a), HUBZone, SDVOSB) submitting a proposal as a JV or Mentor-Protégé shall submit evidence from the offeror's SBA Servicing Agency that the offeror has notified and discussed the proposed joint venture for this specific project with the appropriate SBA Representative or Business Opportunity Specialist. Joint Venture agreements and approved 8(a) Mentor-Protégé agreements must be submitted with the proposal.

7.2.2 Evaluation Criteria:

This information will be used for the purpose of completing the Pre-Award Survey and will not be rated. Joint Venture Agreements and Mentor-Protégé agreements must comply with the relevant regulations in Title 13 of the Code of Federal Regulations in order for an offeror to be eligible for any small business-related price preference.

7.3 Tab C – Evidence of Ability to Obtain Bonding and Proof of Financial Ability

7.3.1 Submission Requirements:

A. Financial Capability. Submit Proof of Financial Ability (Most recent financial statement covering assets and liabilities). Include the name, address, and telephone number of offeror's banking institution. If the offeror is a joint venture, submit this information for all joint venture members.

B. Bonding Capability. Submit information showing offeror's ability to be bonded for a single project as well as aggregate projects. Include the name, address, and telephone number of the offeror's bonding company.

7.3.2 Evaluation Criteria:

This information will be used for the purpose of completing the Pre-Award Survey and will not be rated. See FAR Part 28 for information related to bonds.

If the offeror is a joint venture, submit this information for all joint venture members.

7.4 Tab D – Pre-Award Information

7.4.1 Submission Requirements:

A. The offeror shall submit one completed copy of Section 00 45 00, Representations and Certification.

B. The offeror shall submit the following information:

- a) Number of years the firm has been in business
- b) Name, address, and telephone numbers of two credit/trade references
- c) A list of present commitments, including the dollar value

7.4.2 Evaluation Criteria:

This information will be used for the purpose of completing the Pre-Award Survey and will not be rated.

NAVFAC/USACE PAST PERFORMANCE QUESTIONNAIRE (Form PPQ-0)	
CONTRACT INFORMATION (Contractor to complete Blocks 1-4)	
1. Contractor Information Firm Name: _____ CAGE Code: _____ Address: _____ DUNs Number: _____ Phone Number: _____ Email Address: _____ Point of Contact: _____ Contact Phone Number: _____	
2. Work Performed as: ☐ Prime Contractor ☐ Sub Contractor ☐ Joint Venture ☐ Other (Explain) Percent of project work performed: _____ If subcontractor, who was the prime (Name/Phone #): _____	
3. Contract Information Contract Number: _____ Delivery/Task Order Number (if applicable): _____ Contract Type: ☐ Firm Fixed Price ☐ Cost Reimbursement ☐ Other (Please specify): _____ Contract Title: _____ Contract Location: _____ Award Date (mm/dd/yy): _____ Contract Completion Date (mm/dd/yy): _____ Actual Completion Date (mm/dd/yy): _____ Explain Differences: _____ Original Contract Price (Award Amount): _____ Final Contract Price (<i>to include all modifications, if applicable</i>): _____ Explain Differences: _____	
4. Project Description: Complexity of Work ☐ High ☐ Med ☐ Routine How is this project relevant to project of submission? (<i>Please provide details such as similar equipment, requirements, conditions, etc.</i>) 	
CLIENT INFORMATION (Client to complete Blocks 5-8)	
5. Client Information Name: _____ Title: _____ Phone Number: _____ Email Address: _____	
6. Describe the client's role in the project: 	
7. Date Questionnaire was completed (mm/dd/yy): _____	
8. Client's Signature: _____	

NOTE: NAVFAC/USACE REQUESTS THAT THE CLIENT COMPLETES THIS QUESTIONNAIRE AND SUBMITS DIRECTLY BACK TO THE OFFEROR. THE OFFEROR WILL SUBMIT THE COMPLETED QUESTIONNAIRE TO USACE WITH THEIR

PROPOSAL, AND MAY DUPLICATE THIS QUESTIONNAIRE FOR FUTURE SUBMISSION ON USACE SOLICITATIONS. CLIENTS ARE HIGHLY ENCOURAGED TO SUBMIT QUESTIONNAIRES DIRECTLY TO THE OFFEROR. HOWEVER, QUESTIONNAIRES MAY BE SUBMITTED DIRECTLY TO USACE. PLEASE CONTACT THE OFFEROR FOR USACE POC INFORMATION. THE GOVERNMENT RESERVES THE RIGHT TO VERIFY ANY AND ALL INFORMATION ON THIS FORM.

*ADJECTIVE RATINGS AND DEFINITIONS TO BE USED TO BEST REFLECT
YOUR EVALUATION OF THE CONTRACTOR'S PERFORMANCE*

RATING	DEFINITION	NOTE
(E) Exceptional	Performance meets contractual requirements and exceeds many to the Government/Owner's benefit. The contractual performance of the element or sub-element being assessed was accomplished with few minor problems for which corrective actions taken by the contractor was highly effective.	An Exceptional rating is appropriate when the Contractor successfully performed multiple significant events that were of benefit to the Government/Owner. A singular benefit, however, could be of such magnitude that it alone constitutes an Exceptional rating. Also, there should have been NO significant weaknesses identified.
(VG) Very Good	Performance meets contractual requirements and exceeds some to the Government's/Owner's benefit. The contractual performance of the element or sub-element being assessed was accomplished with some minor problems for which corrective actions taken by the contractor were effective.	A Very Good rating is appropriate when the Contractor successfully performed a significant event that was a benefit to the Government/Owner. There should have been no significant weaknesses identified.
(S) Satisfactory	Performance meets minimum contractual requirements. The contractual performance of the element or sub-element contains some minor problems for which corrective actions taken by the contractor appear or were satisfactory.	A Satisfactory rating is appropriate when there were only minor problems, or major problems that the contractor recovered from without impact to the contract. There should have been NO significant weaknesses identified. Per DOD policy, a fundamental principle of assigning ratings is that contractors will not be assessed a rating lower than Satisfactory solely for not performing beyond the requirements of the contract.
(M) Marginal	Performance does not meet some contractual requirements. The contractual performance of the element or sub-element being assessed reflects a serious problem for which the contractor has not yet identified corrective actions. The contractor's proposed actions appear only marginally effective or were not fully implemented.	A Marginal is appropriate when a significant event occurred that the contractor had trouble overcoming which impacted the Government/Owner.
(U) Unsatisfactory	Performance does not meet most contractual requirements and recovery is not likely in a timely manner. The contractual performance of the element or sub-element contains serious problem(s) for which the contractor's corrective actions appear or were ineffective.	An Unsatisfactory rating is appropriate when multiple significant events occurred that the contractor had trouble overcoming and which impacted the Government/Owner. A singular problem, however, could be of such serious magnitude that it alone constitutes an unsatisfactory rating.

(N) Not Applicable	No information or did not apply to your contract	Rating will be neither positive nor negative.
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TO BE COMPLETED BY CLIENT

**PLEASE CIRCLE THE ADJECTIVE RATING WHICH BEST REFLECTS
YOUR EVALUATION OF THE CONTRACTOR'S PERFORMANCE.**

1. QUALITY:	
a) Quality of technical data/report preparation efforts	E VG S M U N
b) Ability to meet quality standards specified for technical performance	E VG S M U N
c) Timeliness/effectiveness of contract problem resolution without extensive customer guidance	E VG S M U N
d) Adequacy/effectiveness of quality control program and adherence to contract quality assurance requirements (without adverse effect on performance)	E VG S M U N
2. SCHEDULE/TIMELINESS OF PERFORMANCE:	
a) Compliance with contract delivery/completion schedules including any significant intermediate milestones. <i>(If liquidated damages were assessed or the schedule was not met, please address below)</i>	E VG S M U N
b) Rate the contractor's use of available resources to accomplish tasks identified in the contract	E VG S M U N
3. CUSTOMER SATISFACTION:	
a) To what extent were the end users satisfied with the project?	E VG S M U N
b) Contractor was reasonable and cooperative in dealing with your staff (including the ability to successfully resolve disagreements/disputes; responsiveness to administrative reports, businesslike and communication)	E VG S M U N
c) To what extent was the contractor cooperative, businesslike, and concerned with the interests of the customer?	E VG S M U N
d) Overall customer satisfaction	E VG S M U N
4. MANAGEMENT/ PERSONNEL/LABOR	
a) Effectiveness of on-site management, including management of subcontractors, suppliers, materials, and/or labor force?	E VG S M U N
b) Ability to hire, apply, and retain a qualified workforce to this effort	E VG S M U N
c) Government Property Control	E VG S M U N
d) Knowledge/expertise demonstrated by contractor personnel	E VG S M U N
e) Utilization of Small Business concerns	E VG S M U N
f) Ability to simultaneously manage multiple projects with multiple disciplines	E VG S M U N
g) Ability to assimilate and incorporate changes in requirements and/or priority, including planning, execution and response to Government changes	E VG S M U N
h) Effectiveness of overall management (including ability to effectively lead, manage and control the program)	E VG S M U N
5. COST/FINANCIAL MANAGEMENT	
a) Ability to meet the terms and conditions within the contractually agreed price(s)?	E VG S M U N

b) Contractor proposed innovative alternative methods/processes that reduced cost, improved maintainability or other factors that benefited the client	E	VG	S	M	U	N
c) If this is/was a Government cost type contract, please rate the Contractor's timeliness and accuracy in submitting monthly invoices with appropriate back-up documentation, monthly status reports/budget variance reports, compliance with established budgets and avoidance of significant and/or unexplained variances (under runs or overruns)	E	VG	S	M	U	N
d) Is the Contractor's accounting system adequate for management and tracking of costs? <i>If no, please explain in Remarks section.</i>	Yes			No		
e) If this is/was a Government contract, has/was this contract been partially or completely terminated for default or convenience or are there any pending terminations? <i>Indicate if show cause or cure notices were issued, or any default action in comment section below.</i>	Yes			No		
f) Have there been any indications that the contractor has had any financial problems? <i>If yes, please explain below.</i>	Yes			No		
6. SAFETY/SECURITY						
a) To what extent was the contractor able to maintain an environment of safety, adhere to its approved safety plan, and respond to safety issues? (Includes: following the users rules, regulations, and requirements regarding housekeeping, safety, correction of noted deficiencies, etc.)	E	VG	S	M	U	N
b) Contractor complied with all security requirements for the project and personnel security requirements.	E	VG	S	M	U	N
7. GENERAL						
a) Ability to successfully respond to emergency and/or surge situations (including notifying COR, PM or Contracting Officer in a timely manner regarding urgent contractual issues).	E	VG	S	M	U	N
b) Compliance with contractual terms/provisions <i>(explain if specific issues)</i>	E	VG	S	M	U	N
c) Would you hire or work with this firm again? <i>(If no, please explain below)</i>	Yes			No		
d) In summary, provide an overall rating for the work performed by this contractor.	E	VG	S	M	U	N

Please provide responses to the questions above (if applicable) and/or additional remarks. Furthermore, please provide a brief narrative addressing specific strengths, weaknesses, deficiencies, or other comments which may assist our office in evaluating performance risk (please attach additional pages if necessary):

(End of Summary of Changes)

SECTION 01 45 04.10 06

CONTRACTOR QUALITY CONTROL
05/25

PART 1 GENERAL

1.1 REFERENCES

The publications listed below form a part of this specification to the extent referenced. The publications are referred to in the text by basic designation only.

ASTM INTERNATIONAL (ASTM)

ASTM D3740 (2019) Minimum Requirements for Agencies Engaged in the Testing and/or Inspection of Soil and Rock as Used in Engineering Design and Construction

ASTM E329 (2018) Standard Specification for Agencies Engaged in Construction Inspection, Testing, or Special Inspection

1.2 PAYMENT

Separate payment will not be made for providing and maintaining an effective Quality Control program, and all costs associated therewith shall be included in the applicable unit prices or lump-sum prices contained in the Bidding Schedule.

1.3 SUBMITTALS

Government approval/acceptance is required for submittals with a "G" designation; submittals not having a "G" designation are for Contractor Quality Control approval, or for information only. When used, a designation following the "G" designation identifies the office that will review the submittal for the Government. The following shall be submitted in accordance with LRL Section 01 33 00 SUBMITTAL PROCEDURES:

SD-01 Preconstruction Submittals

Design Quality Control Plan; G

Construction Quality Control Plan; G, R0

PART 2 PRODUCTS (Not Applicable)

PART 3 EXECUTION

3.1 GENERAL REQUIREMENTS

The Contractor is responsible for quality control and shall establish and maintain an effective quality control system in compliance with FAR 52.246-12 - Inspection of Construction. The quality control system shall consist of plans, procedures, and organization necessary to produce an end product which complies with the contract requirements. The system shall

cover all design and construction operations, both onsite and offsite, and shall be keyed to the proposed construction sequence. The site project superintendent will be held responsible for the quality of work on the job and is subject to removal by the Contracting Officer for non-compliance with the quality requirements specified in the contract. The site project superintendent in this context shall be the highest level manager responsible for the overall construction activities at the site, including quality and production. The site project superintendent shall maintain a physical presence at the site at all times, except as otherwise acceptable to the Contracting Officer, and shall be responsible for all construction and construction related activities at the site.

3.2 DESIGN QUALITY CONTROL PLAN (DQCP)

All documents shall be technically reviewed by competent, independent reviewers identified in the DQC Plan. The same element that produced the product shall not perform the independent technical review (ITR). The plan must identify the Independent Technical Review Team and their qualifications. The Contractor shall correct errors and deficiencies in the design documents prior to submitting them to the Government.

The DQC Plan shall be implemented by a Design Quality Control Project Manager (DQCPM) who has the responsibility of being cognizant of and assuring that all documents on the project have been coordinated. This individual shall be a person who has verifiable engineering or architectural design experience and is a licensed professional engineer or registered architect and can be one of the DESIGNERS OF RECORD. The Contractor shall notify the Contracting Officer, in writing, of the name of the individual, and the name of an alternate person assigned to the position. The Design Quality Control Project Manager (DQCPM) and the Design Project Manager can be the same person.

In addition to these requirements, the design firm shall have a Design Project Manager (PM), who shall coordinate and manage the design for all disciplines and serve as the point of contact on all design related issues. The Design PM shall be a registered Architect or licensed Engineer, with a minimum of ten years overall designer experience (including PM experience) and a minimum of two years Design PM experience.

The Contractor shall include the design schedule in the master project schedule, showing the sequence of events involved in carrying out the project design tasks within the specific contract period. This should be at a detailed level of scheduling sufficient to identify all major design tasks, including those that control the flow of work. The schedule shall include review and correction periods associated with each item. This should reflect calendar days and not dates for each activity. If the schedule is changed, the Contractor shall submit a revised schedule reflecting the change within seven (7) calendar days. The Contractor shall include in the DQC Plan the discipline-specific checklists to be used during the design and quality control of each submittal.

The Contractor shall furnish for review by the government, not later than ten (10) days after Notice to Proceed, the Contractor Design Quality Control Plan for the design portion of the contract. The professional quality, technical accuracy and the coordination of all design documents and other services to be provided by the prime Contractor and subcontractor/ consultants is of major importance. A logical and functional quality control program requiring technical and interdisciplinary reviews to eliminate errors and deficiencies in the

design documents is required. As a minimum, the DQCP will address the following elements:

Management Approach - Define the specific management-methodology to be followed during the design phase of the work including the relationship between prime contractor and subcontractors/consultants. Address coordination, quality control, communications and lines of responsibility. The DQCP must also cover the process of review and acceptance of construction submittals as specified in LRL Section 01 33 00 SUBMITTAL PROCEDURES.

Management Structure - Delineate the organizational structure and interrelationship of management and the design team including all subcontractor and consultants. Identify the key design and review team members showing their specific responsibilities. Either the designer or the reviewer must be a licensed professional for the Architectural, Civil, Structural, Mechanical and Electrical disciplines.

List submittals required, dates for submittal, dates for completion of Government review and products required to be submitted. Technical review comments provided by the ITR Team must be submitted with each design submittals. The approved complete checklists shall be submitted at each design phase as part of the project documentation.

Designer of Record (DOR)- The licensed professional Engineer, or registered Architect ultimately responsible and liable for adequacy and safety of the design. DOR review is required on all submittals and DOR approval is required on all submittals of extensions of design and submittals of critical materials. See LRL Section 01 33 00 SUBMITTAL PROCEDURES for definitions of these type submittals.

3.2.1 Acceptance of Plan

Acceptance of the Contractor's Quality Control Plan for Design is required prior to the start of design. Acceptance is conditional and will be predicated on satisfactory performance during the preparation of design documents. The Government reserves the right to require the Contractor to make changes in his CQC Plan for Design, and operations including removal of personnel, as necessary, to obtain the quality specified.

3.3 CONSTRUCTION QUALITY CONTROL PLAN (CQCP)

The Contractor shall furnish for review by the Government, not later than thirty (30) days after receipt of notice to proceed, the Contractor Construction Quality Control (CQC) Plan proposed to implement the requirements of FAR 52.246-12 - Inspection of Construction. The plan shall identify personnel, procedures, control, instructions, tests, records, and forms to be used. The Government will consider an interim plan for the first thirty (30) days of operation. Construction will be permitted to begin only after acceptance of the CQC Plan or acceptance of an interim plan applicable to the particular feature of work to be started. Work outside of the features of work included in an accepted interim plan will not be permitted to begin until acceptance of a CQC Plan or another interim plan containing the additional features of work to be started.

3.3.1 Content of the CQC Plan

The CQC Plan shall include, as a minimum, the following to cover all construction operations, both onsite and offsite, including work by

subcontractors, fabricators, suppliers, and purchasing agents:

- a. A description of the quality control organization, including a chart showing lines of authority and acknowledgment that the CQC staff shall implement the three phase control system for all aspects of the work specified. The staff shall include a CQC System Manager who shall report to someone higher in the Contractor's organization than the project superintendent, shall not be the superintendent.
- b. The name, qualifications (in resume format), duties, responsibilities, and authorities of each person assigned a CQC function.
- c. A copy of the letter to the CQC System Manager signed by an authorized official of the firm which describes the responsibilities and delegates sufficient authorities to adequately perform the functions of the CQC System Manager, including authority to stop work which is not in compliance with the contract. The CQC System Manager shall issue letters of direction to all other various quality control representatives outlining duties, authorities, and responsibilities. Copies of these letters shall also be furnished to the Government.
- d. Procedures for scheduling, reviewing, certifying, and managing submittals, including those of subcontractors, offsite fabricators, suppliers, and purchasing agents. These procedures shall be in accordance with LRL Section 01 33 00 SUBMITTAL PROCEDURES.
- e. Control, verification, and acceptance testing procedures for each specific test to include the test name, specification paragraph requiring test, feature of work to be tested, test frequency, and person responsible for each test. (Laboratory facilities will be approved by the Contracting Officer.)
- f. Procedures for tracking preparatory, initial, and follow-up control phases and control, verification, and acceptance tests including documentation.
- g. Procedures for tracking construction deficiencies from identification through acceptable corrective action. These procedures shall establish verification that identified deficiencies have been corrected.
- h. Reporting procedures, including proposed reporting formats.
- i. A list of the definable features of work. A definable feature of work is a task which is separate and distinct from other tasks, has separate control requirements, and may be identified by different trades or disciplines, or it may be work by the same trade in a different environment. Although each section of the specifications may generally be considered as a definable feature of work, there are frequently more than one definable features under a particular section. This list will be agreed upon during the coordination meeting.

3.3.2 Acceptance of Plan

Acceptance of the Contractor's plan is required prior to the start of construction. Acceptance is conditional and will be predicated on satisfactory performance during the construction. The Government reserves the right to require the Contractor to make changes in his CQC Plan and operations including removal of personnel, as necessary, to obtain the quality specified.

3.3.3 Notification of Changes

After acceptance of the CQC Plan, the Contractor shall notify the Contracting Officer in writing of any proposed change. Proposed changes are subject to acceptance by the Contracting Officer.

3.4 COORDINATION MEETING

After the Preconstruction Conference, before start of construction, and prior to acceptance by the Government of the CQC Plan, the Contractor shall meet with the Contracting Officer or Authorized Representative and discuss the Contractor's quality control system. The CQC Plan shall be submitted for review a minimum of thirty (30) calendar days prior to the Coordination Meeting. During the meeting, a mutual understanding of the system details shall be developed, including the forms for recording the CQC operations, control activities, testing, administration of the system for both onsite and offsite work, and the interrelationship of Contractor's Management and control with the Government's Quality Assurance. Minutes of the meeting shall be prepared by the Government and signed by both the Contractor and the Contracting Officer. The minutes shall become a part of the contract file. There may be occasions when subsequent conferences will be called by either party to reconfirm mutual understandings and/or address deficiencies in the CQC system or procedures which may require corrective action by the Contractor.

3.4.1 Subcontractor CQC Orientation

Before a Subcontractor begins work on the jobsite, the CQC System Manager will train the Subcontractor and answer any questions pertaining to quality control operations. This requirement is waived only if a Subcontractor attended the initial coordination meeting described above. A record of the orientation shall be documented in the QC Report.

3.5 CONSTRUCTION QUALITY CONTROL ORGANIZATION

3.5.1 Personnel Requirements

a. The requirements for the CQC organization are a CQC System Manager and sufficient number of additional qualified personnel to ensure safety and contract compliance. A Site Safety Health Officer (SSHO) will be required for this contract. See LRL Section 01 35 26.00 06 GOVERNMENT SAFETY REQUIREMENTS for the SSHO qualifications and duties.

b. Personnel identified in the technical provisions as requiring specialized skills to assure the required work is being performed properly will also be included as part of the CQC organization. The Contractor's CQC staff shall maintain a presence at the site at all times during progress of the work and have complete authority and responsibility to take any action necessary to ensure contract compliance. The CQC staff shall be subject to acceptance by the Contracting Officer. The Contractor

shall provide adequate office space, filing systems and other resources as necessary to maintain an effective and fully functional CQC, and safety/health organization. Complete records of all letters, material submittals, shop drawing submittals, schedules and all other project documentation shall be promptly furnished to the CQC organization by the Contractor. The CQC organization shall be responsible to maintain these documents and records at the site at all times and made available to the SSHO, except as otherwise acceptable to the Contracting Officer.

3.5.2 CQC System Manager Qualifications and Duties

a. The Contractor shall identify as CQC System Manager an individual within the onsite work organization who shall be responsible for overall management of CQC and have the authority to act in all CQC matters for the Contractor. The CQC System Manager **qualifications will be defined in the task order.**

b. This CQC System Manager shall be employed by the Prime Contractor and be on the site at all times during construction. **The CQC System Manager qualifications will be defined in the task order.**

3.5.3 CQC Personnel

CQC Personnel requirements will be identified in the task order.

Experience Matrix Table

<u>AREA</u>		<u>QUALIFICATIONS</u>
a.	[DQCM (person not required to be on site at all times)]	[Licensed Architect or Professional Engineer]
b.	Civil	Graduate Civil Engineer with 2 years related experience or person with 5 yrs related experience
c.	Geotechnical	Graduate Geotechnical Engineer or Civil Engineer specializing in Geotechnical Engineering with 3 yrs relevant experience or Engineering Technician, working under the direction of a Licensed Professional Engineer, with 5 yrs relevant experience
d.	Mechanical	Graduate Mechanical Engineer with 2 yrs related experience or person with 5 yrs related experience
e.	Electrical	Graduate Electrical Engineer with 2 yrs related experience or person with 5 yrs related experience
f.	Structural	Graduate Structural Engineer with 2 yrs related experience or person with 5 yrs related experience

<u>AREA</u>		<u>QUALIFICATIONS</u>
a.	[DQCM (person not required to be on site at all times)]	[Licensed Architect or Professional Engineer]
g.	Architectural	Graduate Architect with 2 yrs related experience or person with 5 yrs related experience
h.	Environmental	Graduate Environmental Engineer with 3 yrs related experience
i.	LEED-AP BD+C	LEED Accredited by GBCI (Green Building Certification Institute)
j.	Submittals	Submittal Clerk with 1yr experience
k.	Occupied family housing	Customer relations person with related coordinator experience in the type of construction proposed
l.	Concrete, Pavements and Soils	Civil Engineer identified in item B or C above, and supplemented with the Corps validated QC testing laboratory
m.	Kitchen Equipment Specialist	Must have 5 years minimum experience in the installation of commercial kitchen equipment and food service equipment
n.	IT/Communications	BICSI Certified RCDD Registered Communication Distribution Designer)with 2 yrs related experience
o.	Roofing	RCI Registered Roof Observer
p.	Fire Protection	See paragraph FIRE Protection QC Specialist

3.5.3.1 Registered Roof Observer

a. The Contractor shall hire an independent RCI Registered Roof Observer (RRO) to perform roof installation quality control during the course of this contract. The independent RRO shall not be employed by the prime contractor but shall be subcontracted and responsible for reporting conditions simultaneously to the Government and the Contractor. The RRO shall be on site for the duration of the roofing operations. The Registered Roof Observers will perform daily oversight and quality control on all roof work to assure compliance with the projects plans and specifications.

b. The Government will supply the format of the daily report file which is intended to supplement the daily QC report instead of replacing same. The RRO shall provide daily reports per CQC requirements, number of squares of roof places and the contractors compliance with specifications and details. The RRO shall take daily color photographs (a minimum 24 photos total for the project) of every type of activity performed that shall include (but not limited to) insulation attachment, application of

roofing membrane and flashings, sheet metal installation, kettle operation, material storage/handling and compliance with safety requirements. Photos may be digital but one hard color copy shall be made daily and kept on site.

3.5.3.1.1 RRO COMMUNICATION WITH THE GOVERNMENT

The Registered Roof Observer shall submit all plans, schedules, reports, and documentation directly to the Contracting Officer's Representative concurrent with submission to the CQC System Manager. The RRO shall have direct communication with the Contracting Officer's Representative regarding all elements of the roofing installation process.

3.5.3.2 Fire Protection QC Specialist

Provide a Fire Protection Quality Control Specialist (FPQC) within the QC organization to perform quality control related activities as specified herein on fire protection and life safety systems installed under this Contract.

3.5.3.2.1 FPQC Qualifications

The FPQC must have the following qualifications:

- a. Be a registered Professional Engineer (P.E.) licensed by a Licensing Board in the United States, the District of Columbia, Guam or Puerto Rico, having passed the National Council of Examiners for Engineering and Surveying (NCEES) examination specifically in the discipline of Fire Protection Engineering.
- b. Have a minimum of 5 years of Fire Protection Engineering experience on projects of similar relevance and complexity to the fire protection work specified under this Contract.
- c. Be employed by an independent engineering firm or company **or be the Fire Protection Engineer on the Prime Contractor's Design-Build team**. The firm may identify multiple, to a maximum of five, licensed Fire Protection Engineers for the performance of the duties under this Contract but must submit the names and qualifications for Government approval for all individuals identified prior to them performing any work under this Contract. These individuals may not be substituted without prior approval from the Contracting Officer.

3.5.3.2.2 Responsibilities

FPQC duties and responsibilities:

- a. Assist in the development of the QC Plan including the Testing Plan and Log and executing the three phases of control for work involving the installation and testing of fire protection and life safety systems as an extension of the QC Manager.
- b. Participate in project QC Meetings. Participate in Preparatory and Initial Phase meetings and perform and Follow-up inspections for work involving the installation and testing of fire protection and life safety systems.
- c. Review and certify that all submittals pertaining to fire protection and life safety systems are complete and accurate prior to submission to

the Government for surveillance approval. Forward each submittal reviewed by the FPQC to the Government for surveillance within 10 working days of FPQC certification. The FPQC Specialist is responsible for ensuring submittals are complete and accurate and all corrections have been made prior to submission to the Government. The Government reserves the right to reject any submittal that has not first been reviewed and certified by the FPQC and so marked, in writing, attesting to such review and completeness of the submittal.

d. The Government reserves the right to reject any submittal or construction that is not in compliance to Contract. Government reviews do not relieve the Contractor responsibility for providing adequate quality control measures and do not constitute or imply acceptance of Contract variation.

e. Perform construction surveillance in accordance with the Schedule of Fire Protection System Inspections. Construction surveillance includes but is not limited to performing periodic on-site inspections during construction at specified milestones, performing a pre-final inspection of installed systems and witnessing functional testing; and participating and documenting in an on-site final acceptance inspection of fire protection and life safety systems with the Government FPE.

e. Perform construction surveillance. Construction surveillance includes but is not limited to performing periodic on-site inspections during construction at specified milestones, performing a pre-final inspection of installed systems and witnessing functional testing; and participating and documenting in an on-site final acceptance inspection of fire protection and life safety systems with the Government FPE.

f. Document inspection results on a FPQC report prepared each day inspections are performed. The report must include a description of the visual inspection or observation performed, a written summary of findings, a conclusion on compliance with the Contract documents, and signature of the FPQC Specialist. In person inspection must be documented to include video (.mp4) or photo (.jpeg) or both. Forward the FPQC daily report to the QC Manager who must include the report with the submission of their daily QC Report to the Government each day. Every site visit by the FPQC must be documented on a FPQC daily report.

3.5.4 Additional Requirements

In addition to the above experience and/or education requirements the CQC System Manager and Alternate(s) shall have completed and passed the course entitled "Construction Quality Management For Contractors" within the last 5 years. A copy of the certification shall be provided with the CQCP. This course is periodically offered by the Associated Builders and Constructors, Inc., or Associated General Contractor, Inc., and the U.S. Army Corps of Engineers.

3.5.5 Organizational Changes

The Contractor shall maintain the CQC staff at full strength at all times. When it is necessary to make changes to the CQC staff, the Contractor shall revise the CQC Plan to reflect the changes and submit the changes to the Contracting Officer for acceptance.

3.6 SUBMITTALS AND DELIVERABLES

Submittals, if needed, shall be made as specified in LRL Section 01 33 00 SUBMITTAL PROCEDURES. The CQC organization shall be responsible for certifying that all submittals and deliverables are in compliance with the contract requirements. When LRL Section 01 91 00.15 BUILDING COMMISSIONING is included in the contract, the submittals required by those sections shall be coordinated with LRL Section 01 33 00 SUBMITTAL PROCEDURES to ensure adequate time is allowed for each type of submittal required.

3.7 CONTROL

Contractor Quality Control is the means by which the Contractor ensures that the construction, to include that of subcontractors and suppliers, complies with the requirements of the contract. At least three phases of control shall be conducted by the CQC System Manager for each definable feature of work as follows:

3.7.1 Preparatory Phase

This phase shall be performed prior to beginning work on each definable feature of work, after all required plans/documents/materials are approved/accepted, and after copies are at the work site. This phase shall include:

- a. A review of each paragraph of applicable specifications, reference codes, and standards. A copy of those sections of referenced codes and standards applicable to that portion of the work to be accomplished in the field shall be made available by the Contractor at the preparatory inspection. These copies shall be maintained in the field and available for use by Government personnel until final acceptance of the work.
- b. A review of the contract drawings.
- c. A check to assure that all materials and/or equipment have been tested, submitted, and approved.
- d. Examination of the work area to assure that all required preliminary work has been completed and is in compliance with the contract.
- e. A physical examination of required materials, equipment, and sample work to assure that they are on hand, conform to approved shop drawings or submitted data, and are properly stored.
- f. A review of the appropriate activity hazard analysis to assure safety requirements are met.
- g. Discussion of procedures for controlling quality of the work including repetitive deficiencies. Document construction tolerances and workmanship standards for that feature of work.
- h. A check to ensure that the portion of the plan for the work to be performed has been accepted by the Contracting Officer.
- i. Resolve all differences.

- j. Discussion of the initial control phase.
- k. Review of provisions that have been made to provide required control inspection and testing.
- l. Review of the CQC plan, specifically its organization chart and delegation letters. Insure all required members of the CQC organization for this feature of work are qualified, have been appointed, accepted and have requisite authority delegated.
- m. The Government shall be notified at least 24 hours in advance of beginning the preparatory control phase. This phase shall include a meeting conducted by the CQC System Manager and attended by the superintendent, other CQC personnel (as applicable), and the foreman responsible for the definable feature. The results of the preparatory phase actions shall be documented by separate minutes prepared by the CQC System Manager and attached to the daily CQC report. The Contractor shall instruct applicable workers as to the acceptable level of workmanship required in order to meet contract specifications.
- n. Review of special inspections required by SECTION 01 45 35 Special Inspections (when included in the task order), the statement of special inspections, and the schedule of special inspections.

3.7.2 Initial Phase

This phase shall be accomplished at the beginning of a definable feature of work. The following shall be accomplished:

- a. A check of work to ensure that it is in full compliance with contract requirements. Review minutes of the preparatory meeting.
- b. Verify adequacy of controls to ensure full contract compliance. Verify required control inspection and testing.
- c. Establish level of workmanship and verify that it meets minimum acceptable workmanship standards. Compare with required sample panels as appropriate.
- d. Resolve all differences.
- e. Check safety to include compliance with and upgrading of the safety plan and activity hazard analysis. Review the activity analysis with each worker.
- f. The Government shall be notified at least 48 hours in advance of beginning the initial phase. Separate minutes of this phase shall be prepared by the CQC System Manager and attached to the daily CQC report. Exact location of initial phase shall be indicated for future reference and comparison with follow-up phases.
- g. The initial phase should be repeated for each new crew to work onsite, or any time acceptable specified quality standards are not being met.
- h. Coordinate scheduled work with special inspections required by SECTION 01 45 35 Special Inspections, the statement of special inspections, and the schedule of special inspections.]

3.7.3 Follow-up Phase

Daily checks shall be performed to assure control activities, including control testing, are providing continued compliance with contract requirements, until completion of the particular feature of work. The checks shall be made a matter of record in the CQC documentation. Final follow-up checks shall be conducted and all deficiencies corrected prior to the start of additional features of work which may be affected by the deficient work. The Contractor shall not build upon nor conceal non-conforming work.

3.7.4 Additional Preparatory and Initial Phases

Additional preparatory and initial phases shall be conducted on the same definable features of work if: the quality of on-going work is unacceptable; if there are changes in the applicable CQC staff, onsite production supervision or work crew; if work on a definable feature is resumed after a substantial period of inactivity; or if other problems develop.

3.8 TESTS

3.8.1 Testing Procedure

The Contractor shall perform specified or required tests to verify that control measures are adequate to provide a product which conforms to contract requirements. Upon request, the Contractor shall furnish to the Government duplicate samples of test specimens for possible testing by the Government. Testing includes operation and/or acceptance tests when specified. For QC testing of construction materials including soil, rock, aggregate, asphalt, concrete, and steel, the Contractor shall procure the services of a Corps of Engineers (COE) validated testing laboratory or establish a COE validated testing laboratory at the project site. Technical specifications included in the contract that require materials testing by an approved commercial testing laboratory shall be intended to mean by a COE validated laboratory. The Contractor shall perform the following activities and record and provide the following data:

- a. Verify that testing procedures comply with contract requirements.
- b. Verify that facilities and testing equipment are available and comply with testing standards.
- c. Check test instrument calibration data against certified standards.
- d. Verify that recording forms and test identification control number system, including all of the test documentation requirements, have been prepared.
- e. Results of all tests taken, both passing and failing tests, shall be recorded on the CQC report for the date taken. Specification paragraph reference, location where tests were taken, and the sequential control number identifying the test shall be given. If approved by the Contracting Officer, actual test reports may be submitted later with a reference to the test number and date taken. An information copy of tests performed by an offsite or commercial test facility shall be provided directly to the Contracting Officer. Failure to submit timely test reports as

stated may result in nonpayment for related work performed and disapproval of the test facility for this contract.

3.8.2 Testing Laboratories

3.8.2.1 Capability Check

The Government reserves the right to check laboratory equipment in the proposed laboratory for compliance with the standards set forth in the contract specifications and to check the laboratory technician's testing procedures and techniques. Laboratories utilized for testing soils, concrete, asphalt, and steel shall meet criteria detailed in [ASTM D3740](#) and [ASTM E329](#).

3.8.2.2 Capability Recheck

If the selected laboratory fails the capability check, the Contractor will be assessed a charge of \$1,375.00 to reimburse the Government for each succeeding recheck of the laboratory or the checking of a subsequently selected laboratory. Such costs will be deducted from the contract amount due the Contractor.

3.8.3 Onsite Laboratory

The Government reserves the right to utilize the Contractor's control testing laboratory and equipment to make assurance tests, and to check the Contractor's testing procedures, techniques, and test results at no additional cost to the Government.

3.8.4 Furnishing or Transportation of Samples for Testing

Costs incidental to the transportation of samples or materials shall be borne by the Contractor. Samples of materials for test verification and acceptance testing by the Government shall be delivered to the Corps of Engineers Division Laboratory, f.o.b., at the following address:

For delivery by mail:

Geotechnical & Structures Laboratory
Material Testing Center (GS-E)
U.S. Army Engineer Research and Development Center
3909 Halls Ferry Road
Vicksburg, MS 39180-6199

Coordination for each specific test, exact delivery location, and dates will be made through the Area Office.

3.9 COMPLETION INSPECTION

3.9.1 Punch-Out Inspection

Near the end of the work, or any increment of the work established by a time stated in the FAR 52.211-10 - Commencement, Prosecution, and Completion of Work, or by the specifications, the CQC System Manager shall conduct an inspection of the work. A punch list of items which do not conform to the approved drawings and specifications shall be prepared and included in the CQC documentation, as required by paragraph DOCUMENTATION. The list of deficiencies shall include the estimated date by which the deficiencies will be corrected. The CQC System Manager or staff shall make

a second inspection to ascertain that all deficiencies have been corrected. Once this is accomplished, the Contractor shall notify the Government that the facility is ready for the Government Pre-Final inspection.

3.9.2 Pre-Final Inspection

The Government will perform the pre-final inspection to verify that the facility is complete and ready to be occupied. A Government Pre-Final Punch List may be developed as a result of this inspection. The Contractor's CQC System Manager shall ensure that all items on this list have been corrected before notifying the Government, so that a Final inspection with the customer can be scheduled. Any items noted on the Pre-Final inspection shall be corrected in a timely manner. These inspections and any deficiency corrections required by this paragraph shall be accomplished within the time slated for completion of the entire work or any particular increment of the work if the project is divided into increments by separate completion dates.

3.9.3 Final Acceptance Inspection

The Contractor's Quality Control Inspection personnel, plus the superintendent or other primary management person, and the Contracting Officer's Representative shall be in attendance at the final acceptance inspection. Additional Government personnel including, but not limited to, those from Base/Post Civil Facility Engineer user groups, and major commands may also be in attendance. The final acceptance inspection will be formally scheduled by the Contracting Officer based upon results of the Pre-Final inspection. Notice shall be given to the Contracting Officer at least fourteen (14) days prior to the final acceptance inspection and shall include the Contractor's assurance that all specific items previously identified to the Contractor as being unacceptable, along with all remaining work performed under the contract, will be complete and acceptable by the date scheduled for the final acceptance inspection. Failure of the Contractor to have all contract work acceptably complete for this inspection will be cause for the Contracting Officer to bill the Contractor for the Government's additional inspection cost in accordance with FAR 52.246-12 - Inspection of Construction.

3.10 DOCUMENTATION

The Contractor shall maintain current records providing factual evidence that required quality control activities and/or tests have been performed. These records shall include the work of subcontractors and suppliers and shall be on an acceptable form that includes, as a minimum, the following information:

- a. Contractor/subcontractor and their area of responsibility.
- b. Operating plant/equipment with hours worked, idle, or down for repair.
- c. Work performed each day, giving location, description, and by whom. When Network Analysis (NAS) is used, identify each phase of work performed each day by NAS activity number.
- d. Test and/or control activities performed with results and references to specifications/drawings requirements. The control phase shall be identified (Preparatory, Initial, Follow-up). List

of deficiencies noted, along with corrective action.

- e. Quantity of materials received at the site with statement as to acceptability, storage, and reference to specifications/drawings requirements.
- f. Submittals and deliverables reviewed, with contract reference, by whom, and action taken.
- g. Offsite surveillance activities, including actions taken.
- h. Job safety evaluations stating what was checked, results, and instructions or corrective actions.
- i. Instructions given/received and conflicts in plans and/or specifications.
- j. Contractor's verification statement.
- k. These records shall indicate a description of trades working on the project; the number of personnel working; weather conditions encountered; and any delays encountered. These records shall cover both conforming and deficient features and shall include a statement that equipment and materials incorporated in the work and workmanship comply with the contract. The original and one copy of these records in report form shall be furnished to the Government daily within 24 hours after the date covered by the report. All calendar days shall be accounted for throughout the life of the contract. Reports shall be signed and dated by the CQC System Manager. The report from the CQC System Manager shall include copies of test reports and copies of reports prepared by all subordinate quality control personnel.
- l. Deficiency Tracking System. The Contractor shall maintain a cumulative list of deficiencies identified for the duration of the project. Deficiencies to be listed include those failures, Government oral observations and Notifications of Noncompliance. The list shall be maintained at the project site. Copies of updated listings shall be submitted to the Government at least every thirty (30) days.

3.11 NOTIFICATION OF NONCOMPLIANCE

The Contracting Officer will notify the Contractor of any detected noncompliance with the foregoing requirements. The Contractor shall take immediate corrective action after receipt of such notice. Such notice, when delivered to the Contractor at the work site, shall be deemed sufficient for the purpose of notification. If the Contractor fails or refuses to comply promptly, the Contracting Officer may issue an order stopping all or part of the work until satisfactory corrective action has been taken. No part of the time lost due to such stop orders shall be made the subject of claim for extension of time or for excess costs or damages by the Contractor.

-- End of Section --